Jordan Ellis
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Constitutional Analysis

Part 1: Summaries of the Articles

Article 1: Congress

Article 1 covers the legislative branch, Congress, which has a House of Representatives and a Senate. Its main powers include making laws, taxing and spending, regulating commerce, coining money, and declaring war, and the Necessary and Proper Clause lets it choose reasonable means to carry those powers out. It is limited by what it cannot do, such as suspending habeas corpus except in rebellion, passing bills of attainder or ex post facto laws, or taxing exports, and the President can veto its bills. The article also sets terms and qualifications for members, explains how a bill becomes a law, and gives the House the power to impeach and the Senate the power to try.

Article 2: The President

Article 2 addresses the executive branch, led by a President and Vice President chosen through the Electoral College. The President enforces the laws, commands the military, makes treaties and appointments with the Senate's approval, grants pardons, and can veto bills. The President is limited by impeachment for treason, bribery, or other high crimes, by the need for Senate consent, and by Congress's control of war and money. The article also sets age, citizenship, and residency requirements and says what happens if the office becomes vacant.

Article 3: The Courts

Article 3 covers the judicial branch, the Supreme Court and any lower courts Congress creates. Judges serve during good behavior and their pay cannot be cut, and the courts hear cases under the Constitution, federal laws, and treaties, plus disputes between states. The courts can only decide real cases, Congress decides which lower courts exist, and the President and Senate choose the judges. The article also guarantees jury trials for crimes and defines treason narrowly so it cannot be used against political opponents.

Article 4: The States

Article 4 is mostly about the states and how they relate to each other and to the nation. It requires each state to honor the public acts and court judgments of other states, protects citizens traveling between states, lets Congress admit new states, and guarantees every state a republican form of government and protection from invasion. The limits come from these shared rules, since

states cannot ignore each other's judgments and new states cannot be carved out of old ones without consent. It also contains the Fugitive Slave Clause, which the 13th Amendment later ended.

Article 5: Amending the Constitution

Article 5 explains how to amend the Constitution and involves Congress and the states, not the President or the courts. An amendment can be proposed by two-thirds of both houses of Congress or by a convention called by two-thirds of the states, and it must be ratified by three-fourths of the states. The high bar is the main limit, and two things were protected: the slave trade clauses until 1808, and each state's equal vote in the Senate. It shows the framers wanted a Constitution that could change without being replaced.

Article 6: Supreme Law

Article 6 deals with the relationship between national and state law, plus oaths and debts. It says the Constitution, federal laws, and treaties are the supreme law of the land, so state judges must follow them over conflicting state laws. The limits are that only laws made in pursuance of the Constitution count, and that no religious test can be required to hold federal office. It also promises that debts from the Confederation stay valid and requires officials to swear an oath to support the Constitution.

Article 7: Ratification

Article 7 explains how the Constitution took effect, so it concerns the people and the states rather than a branch of government. It says the ratification of nine state conventions would be enough to establish the Constitution among the states that approved it. The limit is that it applied only to the states that ratified. It mattered because the Articles of Confederation needed all thirteen states to agree to any change.

Part 2: Amendments

Amendment 1 (1791): Freedom of religion, speech, press, assembly, and petition

It protects freedom of religion, speech, the press, assembly, and petitioning the government. It was written right after the Revolution, when Anti-Federalists feared a strong national government and remembered royal licensing of printers and sedition cases like Zenger's.

Amendment 2 (1791): The right to keep and bear arms

It protects the right to keep and bear arms, which the Supreme Court has read as an individual right in District of Columbia v. Heller. It was written when colonists remembered Lexington and Concord and distrusted standing armies, so militias were seen as a protection against tyranny.

Amendment 3 (1791): No quartering of soldiers

It protects homeowners from being forced to house soldiers in peacetime without their consent. It answers the British Quartering Acts of the 1760s and 1770s, which the Declaration of Independence listed as a grievance.

Amendment 4 (1791): Protection against unreasonable searches

It protects people from unreasonable searches and seizures and requires warrants based on probable cause. It was written after British writs of assistance let officers search any home, which James Otis challenged in 1761.

Amendment 5 (1791): Grand jury, double jeopardy, self-incrimination, due process, takings

It protects the rights to a grand jury, no double jeopardy, no self-incrimination, due process, and payment when property is taken. It grew out of English history of forced confessions and secret courts and gave Americans basic protections in criminal cases.

Amendment 6 (1791): Rights of the accused

It guarantees the accused a speedy public trial, an impartial jury, notice of the charges, the right to confront witnesses, and a lawyer. The Declaration complained about the loss of jury trials and trials overseas, so the framers wrote protections against those abuses.

Amendment 7 (1791): Jury trials in civil cases

It preserves jury trials in federal civil cases, which are disputes between people or businesses over more than twenty dollars. Anti-Federalists feared losing civil juries as a check on judges, and this was added in 1791 to answer them.

Amendment 8 (1791): No excessive bail or cruel and unusual punishment

It bans excessive bail, excessive fines, and cruel and unusual punishments. The wording comes from the English Bill of Rights of 1689, written after abuses by the Stuart kings, and it was meant to stop harsh punishments from being used against opponents.

Amendment 9 (1791): Unenumerated rights

It says that listing some rights does not mean people have no others. Madison wrote it because he feared the Bill of Rights could be read as a complete list, and it was added in 1791 to calm that worry.

Amendment 10 (1791): Powers reserved to the states and the people

It reserves powers not given to the national government to the states or the people, which protects federalism. It repeats an idea from the Articles of Confederation and answered Anti-Federalist fears that the new government would grow too strong.

Amendment 11 (1795): Suits against states

It limits lawsuits against states by citizens of other states or foreign countries. It was written after Chisholm v. Georgia (1793), when states feared suits over Revolutionary War debts, and it became the first amendment to overturn a Supreme Court decision.

Amendment 12 (1804): Separate electoral votes for President and Vice President

It requires electors to vote separately for President and Vice President. It was written in the early republic after the election of 1800, when Jefferson and Burr tied with 73 votes and the House needed 36 ballots, because political parties had changed how elections worked.

Amendment 13 (1865): Abolition of slavery

It abolishes slavery and involuntary servitude except as punishment for a crime. It was written at the end of the Civil War, after the Emancipation Proclamation, and its exception clause is still debated because of practices like convict leasing.

Amendment 14 (1868): Citizenship, due process, and equal protection

It makes everyone born or naturalized in the United States a citizen and bars states from denying due process or equal protection. It came during Reconstruction, after the Black Codes and the Dred Scott decision, and it became the basis for applying the Bill of Rights to the states and for Brown v. Board of Education.

Amendment 15 (1870): Voting rights regardless of race

It says the right to vote cannot be denied because of race, color, or previous enslavement. It was passed during Reconstruction, but after 1877 states used poll taxes, literacy tests, and violence to get around it, so the promise was not fully enforced until the 1960s.

Amendment 16 (1913): Federal income tax

It lets Congress tax incomes without dividing the tax among the states by population. It was written in the Progressive Era to reverse Pollock v. Farmers' Loan (1895), which struck down a federal income tax, and reformers saw it as a fairer way to fund government.

Amendment 17 (1913): Direct election of Senators

It provides for the direct election of Senators by the people instead of by state legislatures. It was a Progressive Era reform responding to deadlocked legislatures and corruption in choosing Senators.

Amendment 18 (1919): Prohibition

It prohibited making, selling, or transporting alcohol. It came from the temperance movement and anti-German feeling during World War I, and it led to bootlegging and organized crime, which shows how a law can have unintended consequences.

Amendment 19 (1920): Women’s right to vote

It protects the right to vote regardless of sex. It followed decades of activism from Seneca Falls in 1848 to Alice Paul's pickets, but many women of color still faced barriers like poll taxes and literacy tests.

Amendment 20 (1933): Presidential and congressional terms

It moves the start of the President's term to January 20 and Congress's to January 3. It was written during the Great Depression, when a long gap between the election and the inauguration slowed the nation's response to the crisis.

Amendment 21 (1933): Repeal of Prohibition

It repealed the 18th Amendment and ended Prohibition. It passed during the Depression when Prohibition had become unpopular, and it is the only amendment ratified by state conventions instead of state legislatures.

Amendment 22 (1951): Two-term limit for President

It limits a President to two elected terms. It was written after Franklin Roosevelt won four elections, and it turned George Washington's two-term tradition into a written rule.

Amendment 23 (1961): Presidential electors for the District of Columbia

It gives residents of Washington, D.C. electoral votes for President. It was written during the civil rights era, when D.C.'s large Black population paid taxes but could not vote for President, though D.C. still has no voting members of Congress.

Amendment 24 (1964): Ban on poll taxes in federal elections

It bans poll taxes in federal elections. It was written during the civil rights movement, when poll taxes were used to keep Black and poor Southerners from voting.

Amendment 25 (1967): Presidential succession and disability

It explains what happens when a President dies, resigns, or cannot serve, and how a Vice President is replaced. It came after President Kennedy's assassination left the nation without a Vice President for fourteen months, and it was first used in 1973.

Amendment 26 (1971): Voting age lowered to eighteen

It lowers the voting age to eighteen. It was passed during the Vietnam War because young people could be drafted at 18 but could not vote, and it was ratified in about 100 days.

Amendment 27 (1992): Congressional pay changes

It says congressional pay raises cannot take effect until after the next House election. James Madison proposed it in 1789, and it was finally ratified in 1992 after a University of Texas student, Gregory Watson, campaigned for it.

Reflection: The Constitution Through a Legal Lens

The Constitution's own design made the amendments possible. Article V gave the nation a way to change the text without starting over, and it required wide agreement, which is why only twenty-seven amendments exist. Separation of powers and judicial review mattered too: when the Supreme Court decided Chisholm and Pollock, the 11th and 16th Amendments changed the Constitution so those rulings no longer controlled the result.

The 14th and 19th Amendments show who gained protection over time. The 14th, written after the Civil War and the Dred Scott decision, made formerly enslaved people citizens with equal protection, and it later carried the Bill of Rights to the states. The 19th, won by decades of activism from Seneca Falls to Alice Paul, gave women the vote, though many women of color still faced barriers. As Madison wrote, "Ambition must be made to counteract ambition," and the amendments show Americans using that design to keep widening who is protected.